

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
JESUS RODRIGUEZ,

Plaintiff,

**SUMMONS WITH
VERIFIED COMPLAINT**

-against-

Index No.:

Dated Purchased:

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
FARID, TAX ID 925259, SHIELD # 24995
INDIVIDUALLY AND AS A POLICE
OFFICER, JOHN, AND JANE DOE.,
INDIVIDUALLY AND AS A POLICE OFFICERS,Plaintiff designates New York
County as the place of trial.
The basis of the venue is place
where the cause of action arose:Defendants.
-----X**To the above named Defendant(s):**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons, exclusive of the day of service, (30) days after the service is complete, if the summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 7th day of March, 2016
EMDIN & RUSSELL, LLP.
Royce Russell, Esq., as Counsel
Attorneys for Plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

Defendants address:

City of New York
c/o Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

Police Officer Farid
Shield # 24995
PCT. 25th
120 East 119th St.
NY, NY, 10035

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COUNTY OF NEW YORK

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INDIVIDUALLY AND AS A POLICE
OFFICER, JOHN, AND JANE DOE.,
INDIVIDUALLY AND AS A POLICE OFFICERS,

Defendants.

-----X

The plaintiff, Jesus Rodriguez, by his attorneys, Emdin & Russell, LLP
complaining of the defendants, respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City," was, and still is a municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.
2. Upon information and belief at all times hereinafter mentioned, the defendant, the City of New York, hereinafter certified to as "City," its agents, servants and/or employees operated, maintained and controlled the New York City Police Department hereinafter referred to as "NYPD", including all the police officers and correction officers therein.
3. Upon information and belief, at all times hereinafter mentioned, and on the 13th day of April, 2015, Police Officer Farid, hereinafter referred to as "Farid" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 25th pct., and at all relevant

times set forth below acted in the capacity of a police officer. Upon information and belief his Shield # is 24995.

4. Upon information and belief at all times hereinafter mentioned and on the 13th day of April, 2015, “Farid,” was acting within the scope of his employment as a police officer and under the direction of the “City” as their agent, servant and/or employee.

5. Upon information and belief, at all times hereinafter mentioned, and on the 13th day of April, 2015, Police Officers John, and Jane Doe were employed as a Police Officers by the “City” and/or “NYPD” and assigned to the 25th pct., and at all relevant times set forth below acted in the capacity of a police officer.

6. Upon information and belief at all times hereinafter mentioned and on the 13th day of April, 2015, “Jane” was acting within the scope of her employment as a police officer and under the direction of the “City” as their agent, servant and/or employee.

7. Upon information and belief, at all times hereinafter mentioned, and on the 13th day of April, 2015, “John Doe” was the supervisor and in charge of defendant officers.

8. Upon information and belief, on April 13, 2015 Farid, John, and/or Jane individually and/or collectively, were acting under and required to follow the New York City Police Patrol Guidelines, Police Legal Memorandum, Police Interim Orders, and Police Administrative Orders.

9. On the 13th day of April, 2015, plaintiff Jesus Rodriguez, hereinafter referred to as “Rodriguez” was a resident of the State of New York, County of New York.

10. That on April 13, 2015, at approximately 7:30 p.m. the plaintiff, Rodriguez, was lawfully in his residence parking lot, on or near his place of residence 1919 Madison Avenue,

New York, New York 10035, cleaning his car, when he noticed a spray bottle in the form of a lipstick container. Rodriguez sprayed said lipstick container in the air and the wind blew back the spray into his face, mouth and eyes.

11. Rodriguez eyes, face, mouth, and chest started to burn.

12. Rodriguez could not see but nonetheless made his way into the lobby of his residence 1919 Madison Avenue, New York, New York, 10035 hereinafter referred to as the "location".

13. While lying in the lobby on the floor and screaming for medical assistance, a neighbor contacted Rodriguez mother.

14. Another neighbor and" Rodriguez's" mother individually and repeatedly called 911, respectively, for an ambulance.

15. During this time Rodriguez was taken into the location's laundry room to have his face and eyes rinsed as he awaited medical assistance.

16. Rodriguez and others waited for the ambulance to arrive, however the police officers Farid, and Jane Doe arrived first.

17. Farid and Jane aggressively and repeatedly asked Rodriguez "Who sprayed you with pepper spray?"

18. Rodriguez and mother responded "He did this to himself." Farid and Jane ignored the response and continued to ask "Who did this to you?"

19. Again Rodriguez and his mother responded as they had stated previously.

20. Then Jane responded "We do not have time for this."

21. Rodriguez's mother then responded "What" and an argument proceeded between

them.

22. Farid joined the argument in which Rodriguez's mother stated "We did not call the police he's in pain we called for an ambulance".

23. Rodriguez then stated "Ya'll never do your jobs." Farid then began to arrest Rodriguez upon hearing this comment. Then Rodriguez said "You can barely speak English.

24. During this time Jane radioed for additional units, as oppose to an ambulance

25. As a result of the radio call approximately 20 or more additional officers arrived

26. One additional officer "John" approached Rodriguez and inquired as to what happened.

27. Rodriguez with swollen eyes and in pain proceeded to explain how the injury occurred as well as his need for medical assistance.

28. While "John" was conversing with Rodriguez, Farid proceeded to handcuff Rodriguez. Rodriguez asked why he was being handcuffed and he received no answer. None of the officers present in particular John intervened on Rodriguez's behalf, the said officers let matters transpire and observed Farid's, Jane's and John's misconduct.

29. Farid used excessive force in handcuffing Rodriguez extremely tightly. Failed and refused to loosen said handcuffs despite Rodriguez's complaints.

30. Farid, Jane, and John abused their power and authority by handcuffing, arresting, and delaying the medical treatment of Rodriguez.

31. Farid stated to Rodriguez that "You're going to learn how to respect me and I'm going to show you how I don't speak English". This statement was articulated as Rodriguez was being escorted to a waiting motor patrol car.

32. Rodriguez repeatedly asked what was going on and why he was being arrested as well as repeatedly stating he was in pain.

33. Farid, Jane, and John detained Rodriguez as he was handcuffed and placed in a police vehicle, for approximately one hour and fifteen minutes.

34. Rodriguez observed Farid, Jane, and John interfering with EMT personnel from treating him, by blocking EMT's access, to Rodriguez and also trying to prevent Rodriguez's mother from escorting him to the hospital.

35. Rodriguez was eventually taken to a hospital while still handcuffed. Rodriguez remained handcuffed for an additional 5 hours before being released from the hospital with a summons issued by Farid.

36. Prior to receiving the summons, Rodriguez observed and heard Farid and Jane on their respective cell phones asking someone what they should charge Rodriguez criminally.

37. Rodriguez was eventually un-handcuffed and released. The summonses were dismissed.

38. That notices of the Plaintiff's claim and notice of intention to sue for damages, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose were duly served upon the comptroller of the defendant "City".

39. That a 50(h) hearing was held on October 20, 2015.

40. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

41. That this action is commenced within one year and 90 days after the cause of

action arose.

42. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

AS AND FOR A FIRST CAUSE OF
ACTION ON BEHALF OF PLAINTIFF, JESUS RODRIGUEZ
FOR FALSE IMPRISONMENT

43. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "42" with the same force and effect as if more fully and at length set forth herein.

44. That beginning on or about the 13th day of April, 2015, at or about approximately 7:30 p.m. at or near the "location" until the Rodriguez's release from custody at the hospital approximately 6 hours later, the named defendants, their agents, servants and/or employees detained and imprisoned plaintiff without any just cause or grounds.

45. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or causes to believe that the plaintiff was guilty of any crimes.

46. The Rodriguez was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the named defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

47. That the named defendants, their agent's, servant's and/or employee's, as set forth above, intended to confine Rodriguez; Rodriguez was conscious of the confinement; he did not consent to the confinement; and the confinement was not otherwise privileged

48. That by reason of the aforesaid false imprisonment and detention, Rodriguez was subjected to great indignity, humiliation, loss of work and loss of freedom and the said Rodriguez has been otherwise damaged.

49. That by reason of the aforesaid, Rodriguez has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF
ACTION ON BEHALF OF PLAINTIFF, JESUS RODRIGUEZ
FOR FALSE ARREST

50. The Rodriguez repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "49" with the same force and effect as if more fully and at length set forth herein.

51. That beginning on or about the 13th day of April, 2015, at or about approximately 7:30 p.m. at the "location", Rodriguez was handcuffed and placed under arrest by the named defendants, their agents, servants and/or employees without any just cause or grounds, and held against his will under full force of arms.

52. That said arrest was caused by the named defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds to believe that the Rodriguez committed, or was about to commit a crime or was guilty of any crimes.

53. Rodriguez was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the named defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

54. That the named defendants, their agents, servants and/or employees, as set forth above, intended to seize, search, and arrest Rodriguez; that Rodriguez was conscious of the arrest and confinement; Rodriguez did not consent to the arrest and confinement; and the arrest was not otherwise privileged.

55. That by reason of the aforesaid false arrest, Rodriguez was subjected to great indignity, humiliation, stress and loss of freedom and the said Rodriguez has been otherwise damaged.

56. That by reason of the aforesaid, Rodriguez has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF, JESUS RODRIGUEZ
FOR ASSAULT AND BATTERY

57. Rodriguez repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "56" with the same force and affect as if more fully and at length set forth herein.

58. The Rodriguez was grabbed, handcuffed tightly, prevented from receiving medical attention and treatment by the named defendants, "City", and the "NYPD" its agents/servants, and/or employees, including the defendants Farid, Jane and John.

59. That all said contact was committed without Rodriguez's permission or consent.
60. That all said contact was unlawful and without privilege.
61. That said use of force was excessive under the circumstances.
62. That all contact committed by named defendants through their agents, servants, and/or employees, including the named defendant police officers, was offensive to Rodriguez and caused him to fear further contact and imminent harm, and caused Rodriguez to sustain physical and/or psychological injury and/or discomfort.
63. That the above acts committed by the named defendants constituted an assault and/or battery of Rodriguez.
64. That by reason of the aforesaid, Rodriguez has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF, JESUS RODRIGUEZ
FOR NEGLIGENCE

65. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "64" with the same force and affect as if more fully and at length set forth herein.
66. That the defendant, "City" was careless and reckless in hiring, retaining, training, supervising and promoting as and for its employee, defendants Farrid, Jane and John respectively in that said employees lacked the experience, deportment and ability to be employed by the named defendants in the capacity in which he was utilized, i.e. as a police officer and supervisor of other police officers; in that the defendant, "City" failed to exercise due care and caution in

its hiring and promoting practices; in that the defendant "City" failed to investigate the above named employee's backgrounds; in that the City failed to properly train, supervise and monitor the 'officers; and in that that the defendant City was negligent in disciplining, training, retraining, retaining, promoting and monitoring Farid, Jane and John and in that the defendants, their agents, servants and employees, were otherwise careless, negligent and reckless.

67. That the aforesaid occurrence, to wit: the assault and battery, false arrest and imprisonment, violation of right to assemble and/or associate and to freedom of speech and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the named defendants, its agents, servants and/or employees including defendant Farid, Jane, and John Doe without any negligence on the part of Rodriguez contributing thereto.

68. That by reason of the aforesaid, Rodriguez was injured, imprisoned, lost his freedom, was maliciously prosecuted and he was thereby damaged.

69. That by reason of the aforesaid, Rodriguez has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A FIFTH CAUSE OF ACTION:
FOR VIOLATION
OF PERSONAL CONSTITUTIONAL RIGHTS UNDER
42 U.S.C. 1983 AGAINST FARID, JANE, AND JOHN DOE

70. Rodriguez repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "69" with the same force and effect as if more fully and at length set forth herein.

71. That on or about the 13th day of April, 2015 at or about approximately 7:30 p.m. at the "location", Farid and upon information and belief Jane and John, were present thereat as

part of their regular and official employment as police officers for the defendant, "City".

72. Rodriguez was lawfully and properly at the "location" when "Farid," "Jane and John Doe", individually and/or collectively, acting as agents, servants and/or employees of the defendant "City", forcibly seized and assaulted and battered Rodriguez absent just cause, provocation or reason. Rodriguez had not engaged in any criminal conduct or suspicious activity.

73. Farid, Jane and John, in response to Rodriguez exercising his freedom of speech, assaulted, battered and handcuffed and falsely arrested Rodriguez.

74. The "officers," Jane and John, individually and/or collectively filed or conspired to file, false statements, paperwork, and gave, and/or conspired to give, false information regarding the circumstances of the Plaintiff's arrest.

75. John and Jane failed to intervene, mitigate, stop or report the illegal conduct complained of herein, and instead participated and were complicit in the conduct.

76. That all acts committed by Farid, John and Jane and other agents servants, employees and/or agents of the defendant "City" were committed within the scope of their employment and under color of law.

77. That said acts constituted a violation of Rodriguez's right to freedom of speech, right to assemble and associate, and an illegal seizure of the plaintiff and deprived Rodriguez of his rights and liberties as set forth in the Constitutions of the United States, i.e. the First, Fourth and Fourteenth Amendments, and of the Constitution of the State of New York and under 42 U.S.C. Section 1983.

78. That the unlawful and illegal conduct of the individual named defendants "officers" deprived Rodriguez of the following rights, privileges and immunities secured to him

by the Constitution of the United States and of the State of New York:

a) The right of Rodriguez to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,

b) The right to freedom of speech and expression.

c) The right to Due Process Law.

d) The right to equal protection under the law.

e) The right to assemble

f) The right to be free from cruel and/or unusual punishment and/or excessive force

79. That by reason of the aforesaid violations, use of force, seizure of plaintiff's person, his false arrest and false imprisonment, assault and battery, making false statements, and results in the malicious prosecution the defendant, the Police Officers, Farid, Jane and/John, violated Rodriguez's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and violated 42 U.S.C. §1983.

80. That as a direct proximate result of Farid's, Jane and John actions Rodriguez was subjected to great to pain, injury, indignities and humiliation, loss of freedom, imprisonment, malicious prosecution and pain and distress of mind and body.

81. That by reason of the aforesaid, Rodriguez has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF, JESUS RODRIGUEZ
FOR MALICIOUS PROSECUTION

82. Rodriguez repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "81" with the same force and affect as if more fully and at length set forth herein.

83. That the Farid, John, and Jane as agents, servants and/or employees of the City of New York, maliciously prosecuted Rodriguez for crimes that they knew he did not commit, and/or that was based upon an illegal seizure of his person and issuing of summons based on fabrications.

84. That as a result of said malicious prosecution Rodriguez was caused to inform his employer of his arrest prior to said charges being dismissed.

85. That by reason of the aforesaid, Rodriguez has been damaged in a sum exceeding the jurisdictional limits of the lower court.

WHEREFORE, Rodriguez demand judgment against the named defendants in a sum to be determined by the trier of fact on the First through Sixth causes of Action, plus costs, attorney's fees, punitive damages (on the Fifth cause of action), and/or declaratory and such other and further relief as to the Court seems just and proper on the First through the Sixth causes of action.

DATED: New York, New York
March 7th, 2016

A handwritten signature in black ink, appearing to read "Royce Russell", is positioned above a horizontal line.

Royce Russell, Esq.,
Emdin & Russell, LLP.
Attorneys for the Plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

CLIENT VERIFICATION

STATE OF NEW YORK]
] ss.:
COUNTY OF NEW YORK]

I, Jesus Rodriguez, being duly sworn depose and say: I am the plaintiff in the within the action, I have read the foregoing Summons and Verified Complaint, and know the contents hereof; the same is true to my own knowledge based upon my own knowledge and belief.


Jesus Rodriguez, **Plaintiff**

Sworn to before me this
7 day of July, 2016



Notary Public

JEFFERY L. EMDIN
Notary Public, State of New York
No. 02EM5068790
Qualified in Westchester County
Commission Expires November 12, 2018

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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-against-

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Defendants.

SUMMONS WITH VERIFIED COMPLAINT

LAW OFFICES OF EMDIN & RUSSELL, LLP

Attorneys for Plaintiff
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New York, New York 10018
(212) 683-3995

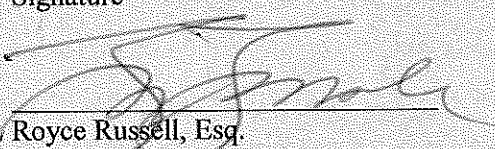
To: Corporation Counsel
City of New York
100 Church Street
New York, New York 10007

Police Officer Farid
Shield # 24995
c/o 25th pct.
120 East 119th St.
New York, NY 10035

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: March 7th, 2016

Signature


Royce Russell, Esq.

PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on
- ☐ NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on